

THE COURT OF SENIOR CIVIL JUDGE & ADDL. M.A.C.T.

SIRSI

Present: Smt. Sunitha,

B.Com., LL.M.PGDFsc

Senior Civil Judge & Addl. M.A.C.T.Sirsi,

M.V.C. No. 40 / 2017

Dated: 14th day of March 2019

Petitioners:

Akshay Chandrashekhhar Bhat,
Age: 15 years, Minor R/by next friend
Mother Smt.Lata W/o Chandrashekar Bhat
a/a 50yrs, R/o KHB Colony, Sirsi.

(By: Sri. A.V.Hegde, Adv.)

V/s

Respondents:

1. Managing Director,
North West Karnataka State
Road Transport Corporation,
Gokul road, Hubballi,
2. Divisional Controller,
NWKRTC, Sirsi
(R-1 By: Sri. A.V.Hegde., Adv.)
(R-2 By: GVN Adv.)

Date of institution of petition	08-02-2017
Nature of the petition	For compensation
Date on which the judgment was pronounced	14-03-2019
Duration of the petitions	<u>Year/s Month/s Day/s</u> (Smt. Sunitha) Senior Civil Judge and Member,Addl.MACT, Sirsi.

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JUDGMENT

This case is filed by Under Sec. 166 of MV Act 1989 for seeking compensation of Rs.15,00,000/- for the accidental injuries sustained by the minor in the motor vehicle accident.

2. The brief facts of the petitioners' case are summarized as under:

That on 8/05/2016 the minor petitioner was going on left side of the road after alighting from the bus near Hanumanti Bus stop on Sirsi-Kumta road. Meanwhile when this minor petitioner was going on the left side of the road on Sirsi-Kumta road the bus bearing Reg.No.KA-25/F-2507 came behind from the Sirsi side in rash and negligent manner and dashed to the minor petitioner. As a result of this accident, the minor petitioner sustained injuries to his right leg, and other parts of the body.

3. After this accident the minor petitioner was shifted to Sirsi Critical Care Unit Sirsi and took treatment and as per the advice of the doctor minor petitioner was shifted to Justice K.S. Hegde Hospital Mangalore and was admitted in the hospital from 9/5/16 to 24/5/16 where it was diagnosed that petitioner sustained **Crush Avulsion injury of right foot**. And for the treatment of which he had spent Rs.70,000/- . And that it is stated even after the discharge he was under bed rest and he has also had to go for follow up treatment. And that the

minor petitioner had to appoint an attendant to look after him when he was under treatment and for which and for transportation, food and nourishment he had to spend huge amount.

4. The minor petitioner is a student and due to this he could not go for school for many months and was under bed rest. Therefore due to this accident there is loss of career as it caused permanent disability .

6. It is alleged the accident in question took place only due to the rash and negligent driving of bus. Hence he filed petition against the respondent No.1 and respondent No.2 who are the owners of the said vehicle, are joint and severally liable to pay compensation of Rs.15,00,000/- for the injury sustained with the interest from the date of the accident till realization. Accordingly prays for allow the petition.

6. The respondent No.1 though notice is served did not appear and hence placed exparte. The respondent no; 2 appeared through his counsel and filed his written statement. Wherein he denied the manner of accident stated in the petition and contended that at the time of accident driver of the said bus stopped his bus at Hanumanti bus stop. After the boarding of the passengers, the conductor of the said bus had given signal to go ahead to the driver of the bus. At that time petitioner was moving beside the left side of the bus and the water bottle of the petitioner fell on the road which roled towards front tyre of the bus. The petitioner hurried to stop the bottle with his leg. The driver of the bus just moved his bus after receiving the signal from conductor, at the same time the petitioner without looking to the moving bus and negligently

made hurried attempt to stop the water bottle which was moving toward the front tyre of the said bus and fell down and sustained injuries. Thus the accident took place totally negligent act by the petitioner only. But the police officers have mechanically filed charge sheet against the driver of this respondent. Therefore this respondent is not liable to pay any compensation. It is further denied the age, treatment and loss of career and expenditure shown in the petition. Therefore on all these grounds prays for dismissal of the petition.

8. On the basis of the pleading of the petitioner the following issues arise for consideration:

ISSUES

- 1. Whether the petitioner proves that on 8-5-2016 at about 15-45 hours when he was going walk on left side of the road after alighting from the bus near Hanumanti bus stop on Sirsi-Kumta road, he met with an accident due to rash and negligent driving of the bus, bearing Reg. No.KA-25/F-2507 ?**
- 2. Whether the respondent No 2 made out any grounds to discharge from the liability?**
- 3. Whether the petitioner is entitled for the compensation as claimed by him, ? If so, what is the quantum and from whom?**
- 4. What order or award?**

9. To substantiate the case of the petitioner, the petitioner

deposed before the court as P.W.1 and got marked 10 documents as Ex.P-1 to 10. On the other hand Respondent No.2 examined as RW1 and got marked one documents as Ex.R1.

10. Heard arguments. On hearing and on perusal of the relevant materials on record, my findings on the above issues are as under:

Issues No.1: In the Affirmative

Issues No.2: In the Negative

Issues No.3: In the Partly Affirmative

Issues No.4: As per final order, for the following:-

REASONS

11. **Issues No.1:** It is the specific allegation of the petitioner that the accident in question was occurred solely due to the rash and negligent driving bus bearing K 25/F-2507 by its driver. To prove this allegation he has relied on the police records which are marked from Ex.P-1 to 3 i.e. the copies of FIR, complaint and charge sheet. From these documents it is revealed that the accident in question was occurred solely due to the rash and negligent driving of the bus by its driver. But second respondent categorically denied accident is taken place due to the rash and negligent driving of bus on the other hand contended that accident was taken place due to the negligent act of minor petitioner himself as it is stated driver of the said bus stopped his bus at Hanumanti bus stop. After the boarding of the passengers, the conductor of the said bus had given signal to go ahead to the driver of the bus. At

that time petitioner was moving beside the left side of the bus and the water bottle of the petitioner fell on the road which rolled towards front tyre of the bus. The petitioner hurried to stop the bottle with his leg and simultaneously the driver of the bus without noticing the same moved his bus and due to which it dashed against minor and fell down and sustained injuries. And to substantiate this fact though driver of the bus examined as Rw1 during the course of cross examination he admitted charge sheet was filed against him and he has not challenged the same. Further if really accident took place due to the negligent act of the minor nothing prevented the respondent from examining any independent witness who witness the incident at the spot. But no such effort is made and also he has not questioned the charge sheet. Thereby respondent indirectly admitted the case of the petitioner. Therefore in the absence of any cogent rebuttal materials in this regard the only inference which has to be drawn is that the accident in question was the outcome of the rash and negligent driving of the Bus by its driver and hence the first issue will have to be answered in favour of the petitioner **in the affirmative.**

12. Issue No. 2: The contention of the respondent No.2 that this accident taken place due to the negligent driving of the bus but accident was taken place due to the negligent act of petitioner is concerned thoroughly discussed while answering issue no;1 and it is held accident taken place due to the rash and negligent driving of the bus. Therefore the respondents being the owners they are liable to pay the compensation to the minor petitioner. Hence this issue is answered against the respondent No.2 **in the negative.**

13. Issue No.3: PW-1 has claimed global compensation at Rs.15,00,000/- from the respondents. Now the question would arise whether the petitioner sustained injury in the said accident and he entitled for global compensation of Rs.15,00,000/-as sought in the petition. It is relevant to note that guardian of the minor petitioner has produced ExP4 which is the discharge summary . which reveals the minor petitioner sustained crush avulsion injury of right foot . For which he was treated at Justice KS Hegde Hospital Mangalore, where wound debridment and VAC application was done and later split skin grafting was done and POP slab was put . Thus the information available in Ex.P-4 is sufficient to conclude petitioner has sustained grievous injuries in the said road traffic accident. Therefore he is entitled for compensation under following heads:

Non pecuniary damages :

(i) Towards pain and sufferings:

The documents relied upon by the PW-1 is discharge summary which reveals nature of injury sustained by him is grievous in nature due to the impact of accident. And he was treated as inpatient for 24+1 days. Therefore having regard to the nature of the injuries sustained by him it could be said that he must have under gone physical pain and suffering and therefore I deem it just and proper to award him reasonable sum of Rs.1,00,000/-

Pecuniary Damages:

(ii) Towards medical expenses:

P.W.1 claims to have incurred more than Rs.75,000/- for his treatment, and accordingly in support of his claim he has produced some medical bills and Hospital bills which are marked as Exp5 and 6 which amounting to Rs.31961/-. The same is not denied by respondents. Therefore, I deem it just and proper to award bill amount of Rs.**31,962/-** under this head.

(iii) Towards conveyance charges:

The record shows that petitioner was treated as an inpatient for 24+1 days. Therefore petitioner must have spent considerable amount towards conveyance hence I am of the opinion it is just and necessary to grant Rs.15,000 /- towards conveyance charges.

(iv) Towards Food, nourishment and attendance charges etc:

As per Ex.P-4 it shows petitioner was inpatient for 24+1 days, during which period he must have spent additional amount towards food, nourishment and attendant charges, for himself and his family members etc. Hence I deem it just and proper to award him a reasonable sum of Rs.15,000/- under this head.

(v) Towards loss of amenities and enjoyment of life:

In the present case the petitioner has sustained crush avulsion injury of right foot with gangrene of right 4th and 5th toes. And he underwent debridement and amputation of gangrenous right 4th and 5th toes followed by VAC application and split skin grafting and due to which minor petitioner will have pain in right foot and ankle

region on walking and he will have difficulty in standing on single leg and there remains surgical scars and right foot deformity. So he must have deprived of the basic comforts and enjoyments of life for some period. Therefore I deem it just and proper to award reasonable sum of Rs. 75,000/- under this head.

(vi) Towards permanent disability:

PW-1 has alleged that the accidental injuries rendered him permanently disabled. In this regard he has relied upon the testimony of P.W.2 who has issued him disability certificate. And PW-2 deposed minor petitioner sustained crush avulsion injury of right foot with gangrene of right 4th and 5th toes. And he underwent debridement and amputation of gangrenous right 4th and 5th toes followed by VAC application and split skin grafting and due to which minor petitioner will have pain in right foot and ankle region on walking and he will have difficulty in standing on single leg and there remains surgical scars and right foot deformity. And therefore he issued disability to an extent of 65%. And though he was cross examined by the counsel for 2nd respondent nothing worth is elicited. It is not disputed that minor petitioner is young aged 15 years and studying and due to accident his 4th and 5th toes amputated. And it caused permanent disability as he cannot enjoy the life as normal person. Which certainly affects his future career. Therefore it is just and necessary to award a sum of Rs 1,00,000 under this head.

(vii) Towards Disfigurement: PW-1 has alleged that the

accidental injuries rendered his son permanently disabled. In this regard he has relied upon the testimony of P.W.2 who has issued him disability certificate. And PW-2 deposed minor petitioner sustained crush avulsion injury of right foot with gangrene of right 4th and 5th toes. And as such his 4th and 5th toes amputated. Thus it caused disfigurement to the foot. The petitioner is young and school going boy and he had long way to go in his career but this disfigurement in the foot certainly come in the way of future career . Therefore it is necessary to award a sum of Rs 50,000 under this head.

(vii) Towards Transportation charges ; The petitioner stated he was treated as an inpatient for 24 days at justice KS Hegde hospital Mangalore and for traveling he had spent a sum of Rs 35,000. And to that effect he has produced Exp7 to 10. The same is not denied by respondents. Therefore, I deem it just and proper to award bill amount of Rs.35,000/- under this head.

Thus the petitioner in this case shall be awarded compensation amount under the various heads as stated below:

01. Towards pain and sufferings.	Rs.	1,00,000-00
02. Towards medical expenses.	Rs.	31,962-00
03. Towards Conveyance charge	Rs.	15,000-00
04. Towards Food, nourishment and Attendance charges	Rs.	15,000-00
05. Towards Loss of amenities and		

	enjoyment of life	Rs.	75,000-00
06.	Towards Permanent Disability	Rs	1,00,000
07.	Towards Disfigurement	Rs	50,000
07.	Towards transportation charges	Rs	35,000
	Total	Rs.	4,21,962

14. Thus, P.W-1 shall be awarded a total compensation of **Rs 4,21,962/-** together with cost of the petition and interest at the rate of 6% p.a..

15. As regards the liability, the driver of the bus is to be primarily held liable whereas the liability of the first and second respondents being the owner of the said vehicle is vicarious in nature. Therefore liability will have to be fastened on the second respondent to pay the compensation. Hence I answer this point in favour of the petitioner **partly in the affirmative**.

16. **Issue No.4:-** In the light of the findings given on the above points, I hereby proceed to pass the following:-

-: ORDER :-

The claim petition filed by the petitioner U/s 166 of M.V Act is hereby partly allowed with costs.

The petitioner is held entitled to a compensation of Rs.4,21,962/- together with interest at the rate of 6% p.a. from the date of the petition till the realization.

The respondents liable to pay to compensation

amount and directed to deposit the above compensation amount into court within two months from the date of this award.

Out of the total compensation amount awarded to the petitioner Rs.3,21,962 /-shall be invested as F.D. in his name in any nationalized or scheduled bank till attaining majority and Rs 1,00,000 shall be released in favour of the guardian of the minor petitioner on proper identification .

Advocate's fee shall be fixed at Rs.1,000/-.

Draw award accordingly.

(Dictated to the Stenographer, directly on computer revised, corrected by me and then pronounced in the open court on this **14th day of March 2019**)

(Smt. Sunitha)

Senior Civil Judge & Member
Addl. MACT Sirsi,

ANNEXURE

WITNESSES EXAMINED ON BEHALF OF PETITIONER/S :-

P.W-1 : Smt. Lata W/o Chandrashekhar Bhat 12-12-2018

DOCUMENTS GOT MARKED ON BEHALF OF PETITIONER/S:-

Ex.P1	:	True copy of FIR	12-12-2018
Ex.P2	:	-do- complaint	-do-
Ex.P3	:	True copy of charge sheet	-do-
Ex.P4	:	Discharge summary of Justice K.S.Hospital	-do-
Ex.P5	:	Hospital Bills	-do-
Ex.P6	:	Medical Bills	-do-
Ex.P7 to 10	:	4 Ambulance bills	-do-

WITNESSES EXAMINED ON BEHALF OF RESPONDENT/S:-

RW1 : Managing Director NWKRTC

DOCUMENTS GOT MARKED ON BEHALF OF RESPONDENT/S:-

Ex.R-1 : Authorization letter 13-03-2019

**Senior Civil Judge & Member
Addl. MACT Sirsi,**

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